

HOUSE BILL 2041

By Parkinson

AN ACT to amend Tennessee Code Annotated, Title 13;
Title 29 and Title 66, relative to evictions.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 29, Chapter 18, is amended by adding the following as a new section:

(a) As used in this section, "participant in an eviction process" means a private entity or person who is serving civil process related to an eviction proceeding or a person affiliated with a private entity or person who is serving civil process related to an eviction proceeding, and does not include a law enforcement officer serving civil process related to an eviction proceeding while engaged in the law enforcement officer's official duties.

(b) Notwithstanding title 39, chapter 13, part 6 to the contrary and unless authorized by a court order, a participant in an eviction process is prohibited from publishing, transmitting, or broadcasting, in real-time or near real-time, any video of the service of civil process upon an individual without the express written permission of the individual.

(c)

(1) An individual who is a victim of a violation of subsection (b) has a private right of action against a person violating this section.

(2) A court may award a victim of a violation of subsection (b) who prevails in an action under this subsection (c):

(A) A minimum of twenty-five thousand dollars (\$25,000) in statutory damages per intentional violation of subsection (b);

- (B) Actual damages;
- (C) Punitive damages, pursuant to § 29-39-104;
- (D) Other forms of equitable relief; and
- (E) Reasonable costs and attorney fees.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.